

formity is not responsible for money not actually received by him still remains in force.] But a trustee will not be justified in allowing the co-trustee to *retain* the money in his hands for a longer period than the particular circumstances of the case may *necessarily* require. And, indeed, the safer course, where practicable, is, that the money should not be handed to either of the trustees personally, but should, in the first instance, be paid into some bank of credit to their joint account (*d*).

8. **Receipts of trustees.**—If money be payable to A., who is simply a trustee for B., it would clearly be a breach of trust to pay it to the trustee against the wishes of the *cestui que trust* (*e*); and, on the other hand, if the nature of the trust be such that the person who has the money ready in his hands could not reasonably be expected to see to the application, he may pay safely to the trustee (*f*). Some recent cases in Ireland have gone further, and taken a distinction between monies which are *pure personalty* and monies payable on *sales* or *mortgages*. Thus, where the owner of a policy assigned it to a trustee for a minor without a power of signing receipts, the Master of the Rolls in Ireland expressed an opinion (for a decision was not * then called for), that if the Insurance Company [*293] were released from the debt by the person to whom they were liable at law, and whom the owner of the policy had constituted the trustee of it, they would not be answerable in equity for the execution of the trusts, and he did not understand how the rules applicable to purchasers of *real property* could be extended to debtors so as to implicate them in trusts created by their creditors (*a*). And in another case (*b*), where the insurer effected a policy for

trust-money, even for a moment, in the power of ONE of themselves, the cases in which they can escape liability on the plea of having signed merely for the sake of conformity are more restricted than formerly, and the plea is one which can only be relied upon under exceptional circumstances.]

[(*d*) See *ante*, p. 265.]

(*e*) *Pritchard v. Langher*, 2 Vern. 197.

(*f*) *Glynn v. Locke*, 3 Dru. & War. 11.

(*a*) *Fernie v. Maguire*, 6 Ir. Eq. Rep. 137.

(*b*) *Ford v. Ryan*, 4 Ir. Ch. Rep. 342.